

HOUSE BILL 2028

By Faison

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 29; Title 47 and Title 65, relative to consumer
protection.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Blacklist" means to:

(A) Reduce visibility or accessibility of a small business's website
on an online platform or other platform;

(B) Remove a small business's website or the search result for
the small business's website from a business entity's platform or the
business entity's related applications or websites; or

(C) Delete or otherwise remove twenty-five percent (25%) or
more of the reviews, if applicable, that a small business has at the time of
removal;

(2) "Online search engine" means an application or website through
which a user can search for information, including the website or contact
information of a small business, on the internet; and

(3) "Small business" means a business entity, including the entity's
affiliates, that employs fifty (50) or fewer full-time employees.

(b) If a business entity blacklists a small business, including an online search
engine on the online search engine company's related applications or websites, then the

business entity must provide notice of the action to the small business within twenty-four (24) hours of the action. The notice must include the following information:

- (1) An explanation of why the business entity blacklisted the small business;
- (2) Information for how the small business can remedy or otherwise respond to the action; and
- (3) Contact information for a representative of the online search engine that the small business may contact to discuss a resolution of the action.

(c)

(1) If a business entity fails to comply with the requirements of subsection (b), then an affected small business may bring a cause of action in a court of competent jurisdiction. A court that finds that the business entity violated subsection (b) may award:

- (A) Actual damages;
- (B) Punitive damages; or
- (C) Reasonable court costs and attorney fees.

(2) In addition to the remedies described under subdivision (c)(1), if a court finds that a business entity is violating subsection (b), then the court may order injunctive relief to enjoin the business entity from continuing to violate subsection (b). A search engine is not in compliance with the requirements of subsection (b) until all information required under subdivisions (b)(1)-(3) is provided to the small business.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to conduct occurring on or after that date.